

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1633 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Annie Menz

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 1633

By: Stanley, Woods, Hamilton,
and Jett of the Senate

and

Maynard of the House

FLOOR SUBSTITUTE

An Act relating to higher education; amending 70 O.S. 2021, Section 3242, which relates to resident tuition eligibility for students with certain status; removing language providing eligibility for students who cannot present certain documentation; removing language regarding eligibility for certain scholarships or financial aid for certain students; removing outdated language; amending 70 O.S. 2021, Section 3242.2, which relates to higher education benefits for certain students; removing exception to prohibition for certain students; removing outdated language; updating statutory language; providing for promulgation of rules; making appropriations to the Office of the Attorney General and the State Regents for Higher Education; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3242, is amended to read as follows:

Section 3242. ~~A.~~ The Oklahoma State Regents for Higher Education may adopt a policy which allows a student to enroll in an

1 institution within The Oklahoma State System of Higher Education and
2 allows a student to be eligible for resident tuition if the student:

3 1. Graduated from a public or private high school in this
4 state; and

5 2. Resided in this state with a parent or legal guardian while
6 attending classes at a public or private high school in this state
7 for at least two (2) years prior to graduation.

8 ~~B. To be eligible for the provisions of subsection A of this~~
9 ~~section, an eligible student shall:~~

10 ~~1. Satisfy admission standards as determined by the Oklahoma~~
11 ~~State Regents for Higher Education for the appropriate type of~~
12 ~~institution and have secured admission to, and enrolled in, an~~
13 ~~institution within The Oklahoma State System of Higher Education;~~
14 ~~and~~

15 ~~2. If the student cannot present to the institution valid~~
16 ~~documentation of United States nationality or an immigration status~~
17 ~~permitting study at a postsecondary institution:~~

18 a. ~~provide to the institution a copy of a true and~~
19 ~~correct application or petition filed with the United~~
20 ~~States Citizenship and Immigration Services to~~
21 ~~legalize the student's immigration status, or~~

22 b. ~~file an affidavit with the institution stating that~~
23 ~~the student will file an application to legalize his~~
24 ~~or her immigration status at the earliest opportunity~~

~~the student is eligible to do so, but in no case later than:~~

~~(1) one (1) year after the date on which the student enrolls for study at the institution, or~~

~~(2) if there is no formal process to permit children of parents without lawful immigration status to apply for lawful status without risk of deportation, one (1) year after the date the United States Citizenship and Immigration Services provide such a formal process, and~~

~~c. if the student files an affidavit pursuant to subparagraph b of this paragraph, present to the institution a copy of a true and correct application or petition filed with the United States Citizenship and Immigration Services no later than:~~

~~(1) one (1) year after the date on which the student enrolls for study at the institution, or~~

~~(2) if there is no formal process to permit children of parents without lawful immigration status to apply for lawful status without risk of deportation, one (1) year after the date the United States Citizenship and Immigration Services provide such a formal process, which~~

1 ~~copy shall be maintained in the institution's~~
2 ~~records for that student.~~

3 ~~C. Any student who completes the required criteria prescribed~~
4 ~~in subsection A of this section, paragraph 1 of subsection B of this~~
5 ~~section, and subparagraph a of paragraph 2 of subsection B of this~~
6 ~~section shall not be disqualified on the basis of the student's~~
7 ~~immigration status from any scholarships or financial aid provided~~
8 ~~by this state.~~

9 ~~D. The provisions of this section shall not impose any~~
10 ~~additional conditions to maintain resident tuition status at a~~
11 ~~postsecondary educational institution within The Oklahoma State~~
12 ~~System of Higher Education on a student who was enrolled in a degree~~
13 ~~program and first received such resident tuition status at that~~
14 ~~institution during the 2006-2007 school year or any prior year.~~

15 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3242.2, is
16 amended to read as follows:

17 Section 3242.2. A. ~~Except as otherwise provided in Section~~
18 ~~3242 of Title 70 of the Oklahoma Statutes, an~~ An individual who is
19 not lawfully present in the United States shall not be eligible on
20 the basis of residence within ~~the~~ this state for:

21 1. Any postsecondary education benefit, including, but not
22 limited to, scholarships or financial aid; or

23 2. Resident tuition.
24

1 B. ~~The provisions of subsection A of this section shall not~~
2 ~~apply to a student enrolled in a degree program at a postsecondary~~
3 ~~educational institution within The Oklahoma State System of Higher~~
4 ~~Education during the 2006-2007 school year or any prior year who~~
5 ~~received a resident tuition benefit pursuant to Section 3242 of~~
6 ~~Title 70 of the Oklahoma Statutes at that institution~~ The Oklahoma
7 State Regents for Higher Education may promulgate rules to implement
8 the provisions of this section.

9 SECTION 3. There is hereby appropriated to the Office of the
10 Attorney General from any monies not otherwise appropriated from the
11 General Revenue Fund of the State Treasury for the fiscal year
12 ending June 30, 2027, the sum of One Hundred Thousand Dollars
13 (\$100,000.00) or so much thereof as may be necessary for litigation
14 expenses incurred by the Office of the Attorney General in relation
15 to this act.

16 SECTION 4. There is hereby appropriated to the State Regents
17 for Higher Education from any monies not otherwise appropriated from
18 the General Revenue Fund of the State Treasury for the fiscal year
19 ending June 30, 2027, the sum of One Hundred Thousand Dollars
20 (\$100,000.00) or so much thereof as may be necessary for litigation
21 expenses incurred by the State Regents for Higher Education in
22 relation to this act.

23 SECTION 5. It being immediately necessary for the preservation
24 of the public peace, health, or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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4 60-2-17572 AQH 04/29/26

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